

23VECV02300 23VECV02300

County: los-angeles

Division: Civil Law and Motion

Department: U

Hearing date: 2026-08-07

Motion: PLAINTIFFS' MOTION FOR ATTORNEYS' FEES, COSTS, AND EXPENSES

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=NW%20%2CU%2C08%2F07%2F2026

Source SHA-256: 2f3980216c941007e10f07eed84c2f53f83ae96a77927573970003cfc92e9e38

Case Number: 23VECV02300 Hearing Date: August 7, 2026 Dept: U

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

CARITA HROZIENCIK, an individual; and RYAN HROZIENCIK, an individual,

Plaintiffs,

vs.

AMERICAN HONDA MOTOR CO., INC., a corporation; and DOES 1-10, inclusive,

Defendants.

)

)

)

)

)

)

)

)

)

)

)

)

CASE NO: 23VECV02300

[TENTATIVE] ORDER RE: PLAINTIFFS' MOTION FOR ATTORNEYS' FEES, COSTS, AND EXPENSES

Dept. U

8:30 a.m.

August 7, 2026

BACKGROUND

This case is a lemon law action filed by Plaintiffs Carita Hroziencik and Ryan Hroziencik against Defendant American Honda Motor Co., Inc.

On May 24, 2023, Plaintiffs filed their complaint against Defendant, alleging: (1) violation of Civil Code section 1793.2 (d); (2) violation of Civil Code section 1793.2 (b); (3) violation of Civil Code section 1793.2 (a)(3); (4) breach of the implied warranty of merchantability; and (5) violation of the Magnuson-Moss Warranty Act.

On June 26, 2023, Defendant filed its answer to the complaint.

On February 21, 2025, the Court denied Plaintiffs' motion to compel the deposition of Defendant's person most knowledgeable.

On March 7, 2025, Plaintiffs filed their notice of settlement of the entire case.

On May 12, 2025, the Court entered the parties' joint stipulation for dismissal with retained jurisdiction under Code of Civil Procedure section 664.6.

On May 20, 2026, Plaintiffs filed their motion for attorneys' fees, costs, and expenses.

On July 20, 2026, Defendant filed its opposition brief.

On July 24, 2026, Plaintiffs filed their reply brief.

RULING

Plaintiffs' motion for attorneys' fees is granted in the reduced total amount of \$35,750.00. Plaintiffs' request for costs is stricken in its entirety.

LEGAL STANDARD

If a buyer-plaintiff prevails in an action under Civil Code section 1794, "the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." Civ. Code, § 1794 (d).

DISCUSSION

While Plaintiffs' motion is untimely per the holding in *Hatlevig*, the Court finds good cause to extend the time for filing and to award Plaintiffs attorneys' fees.

On March 7, 2025, Defendant served a 998 offer on Plaintiffs for \$42,361.36, plus attorneys' fees, costs, and expenses. Plaintiffs ultimately accepted the 998 offer. (Chandy decl., ¶ 53.) On May 12, 2025, the Court dismissed this action with retained jurisdiction to enforce the settlement under Code of Civil Procedure section 664.6. On May 20, 2026, more than a year after dismissal, Plaintiffs filed their motion for attorneys' fees, costs, and expenses.

Defendant complains that Plaintiffs waited more than a year after accepting Defendant's 998 offer to file their motion for attorneys' fees. Defendant cites California Rules of Court, Rule 3.1702 (b)(1), which states, "A notice of motion to claim attorney's fees for services up to and including the rendition of judgment in the trial court -- including attorney's fees on an appeal before the rendition of judgment in the trial court -- must be served and filed within the time for filing a notice of appeal," i.e., within 180 days after notice of entry of judgment.

Defendant cites case law supporting its position that settlements entered under Code of Civil Procedure section 664.6 are properly treated as judgments for purposes of Rule 3.1702. See *Hatlevig v. General Motors LLC* (2026) 118 Cal.App.5th 644, 649 (*Hatlevig*) ("voluntary dismissal, though not appealable, starts the clock running on the time to move for attorney fees when the dismissal concludes the litigation and triggers a right to fees"); see also *Sanabria v. Embrey* (2001) 92 Cal.App.4th 422, 426-427. For example, in *Hatlevig*, the Court of Appeal held that a plaintiff had "at most 180 days after the dismissal to serve and file his motion" for attorneys' fees, and the trial court did not err in denying his motion as untimely where he failed to file his motion for attorneys' fees until two months after the 180 days had already expired. *Hatlevig*, at p. 650.

Plaintiffs argue this case is distinguishable from *Hatlevig* because the *Hatlevig* Court did not address Plaintiffs' argument that a dismissal with retained jurisdiction under 664.6 does not qualify as an order that can be appealed from. The Court disagrees. *Hatlevig* plainly states that a "voluntary dismissal ... starts the clock running on the time to move for attorney fees when the dismissal concludes the litigation and triggers a right to fees." *Hatlevig*, supra, 118 Cal.App.5th at p. 649. That is precisely the situation presented in this case. The Court disagrees with Plaintiffs that their characterization of the facts as set forth in the reply brief distinguishes this case from *Hatlevig*.

The Court also disagrees with Plaintiffs that the Supreme Court's ruling in *Meinhardt v. City of Sunnyvale* (2024) 16 Cal.5th 643 rescues their fee motion. The *Meinhardt* Court addressed a situation where a plaintiff timely filed a notice of appeal after the trial court entered an order stating that the plaintiff take nothing. *Meinhardt*, at p. 662. Here, there is no such order stating that Plaintiffs take nothing. In short, the *Meinhardt* Court addresses a situation that is entirely different from the case at bar. In sum, Plaintiffs' motion is untimely per the holding in *Hatlevig*.

Even so, the Court exercises its discretion to award Plaintiffs attorneys' fees under California Rules of Court, Rule 3.1702 (d), which states, "For good cause, the trial judge may extend the time for filing a motion for attorney's fees in the absence of a stipulation or for a longer period than allowed by stipulation." *Hatlevig* was decided on February 17, 2026, after Plaintiffs had already dismissed this case. Plaintiffs should not be penalized based on a rule of law stated in a case that had not been released when they were planning settlement. Under these circumstances, the Court finds good cause to extend the time for filing and to award Plaintiffs attorneys' fees.

The Court cautions Plaintiffs' counsel that it does not intend to extend this analysis to cases settled after *Hatlevig* was decided.

71.5 hours of attorney time is reasonable for Plaintiffs' counsel to have spent working on this case.

The trial court has an obligation to award only those attorneys' fees that are reasonable. See *PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1096 (*PLCM Group*); see also *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132 (*Ketchum*).

Plaintiffs seek an award of attorneys' fees in the total amount of \$52,182.35, representing 74.4 hours of attorney time at rates between \$350.00/hour and \$695.00/hour, plus a 1.35 multiplier, plus \$3,500.00 in additional fees for anticipated work on the motion for attorneys' fees. While this case involved limited motion practice and some trial preparation, the total number of hours claimed in the billing records attached to Plaintiffs' motion is excessive. Specifically:

Counsel claims 2.7 hours in 2023 for work revising the complaint and drafting meet and confer correspondence. (Challenged by Defendant in Opp. p. 11:19-24.) Such revisionary work should have taken counsel no longer than 1.7 hours to complete. The Court will strike 1.0 hour from Plaintiffs' request for attorneys' fees. ($2.7 - 1.7 = 1.0$.)

Counsel claims 10.1 hours in 2024 for work on a meet and confer letter, drafting discovery, drafting motions in limine, and drafting trial documents. (Challenged by Defendant in Opp. p. 12:1-13.) Such work should have taken counsel no longer than 7.0 hours to complete. The Court will strike 3.1 hours from Plaintiffs' request for attorneys' fees. ($10.1 - 7.0 = 3.1$.)

Counsel claims 11.3 hours in 2025 for work on motions in limine, trial documents, and draft emails between counsel. (Challenged by Defendant in Opp. p. 12:14-23.) Such work should have taken counsel no longer than 8.5 hours to complete. The Court will strike 2.8 hours from Plaintiffs' request for attorneys' fees. ($11.3 - 8.5 = 2.8$.)

In sum, many of Plaintiffs' specific time allocations are for routine lemon law discovery practice that should not take counsel such large amounts of hours to complete. Plaintiffs' counsel appears to seek compensation at high rates for work that has been done hundreds of times previously and which should proceed in a fraction of the hours that are being claimed. Ultimately, the Court will strike 6.9 hours from Plaintiffs' counsel time records. ($1.0 + 3.1 + 2.8 = 6.9$.) Plaintiffs will be allowed to recover 67.5 hours of attorney time for work completed on this case before work on the instant motion for attorneys' fees. ($74.4 - 6.9 = 67.5$.)

As to the instant motion for attorneys' fees, Plaintiffs will be allowed to recover 4.0 additional hours of attorney time. Plaintiffs will thus be allowed to recover 71.5 total hours of attorney time. ($67.5 + 4.0 = 71.5$.) This award is inclusive of counsel's work on the instant motion for attorneys' fees and time to attend the hearing thereon.

Plaintiffs will be awarded \$35,750.00 in attorneys' fees for work completed on this case. (71.5 attorney hours at \$500.00/hour.)

The trial court awards reasonable attorneys' fees according to the lodestar. See *PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1096; see also *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.

Plaintiffs' counsel's declaration states that attorneys who worked on this case bill at rates between \$350.00/hour and \$695.00/hour. (See Chandy decl., Exh. 1.)

The Court has reviewed and considered the parties' arguments regarding setting reasonable rates in this case. \$500.00 is a reasonable hourly rate for attorneys in this matter given Plaintiffs' counsel's experience. The Court disagrees with Plaintiffs that the fact that this case was taken on contingency warrants a greater rate or a fee multiplier. The contingency risk is built into a \$500.00/hour rate.

In sum, the Court will award Plaintiffs their reasonable attorneys' fees for counsel's work on this case up through and including the instant motion for attorneys' fees and the hearing thereon in the total amount of \$35,750.00. (71.5 attorney hours at \$500.00/hour = \$35,750.00.)

Plaintiffs' request for costs is stricken in its entirety.

Plaintiffs request \$10,475.27 based on counsel's declaration itemizing that amount of costs. Claimed costs are mostly related to service of process, filing fees, and trial preparation services. (See Chandy decl., pp. 29-30.)

"A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal... The memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case." California Rules of Court, Rule 3.1700 (a)(1).

Defendant rightfully complains that Plaintiffs filed no verified costs memorandum. Plaintiffs merely include counsel's declaration attesting to the amount of costs expended without the necessary accompanying memorandum or documentary evidence such as invoices and receipts. Plaintiffs fail to respond to this argument in their reply brief.

Plaintiffs' request for costs is stricken in its entirety.

CONCLUSION

Plaintiffs Carita Hroziencik and Ryan Hroziencik's motion for attorneys' fees is GRANTED in the reduced total amount of \$35,750.00.

Plaintiffs Carita Hroziencik and Ryan Hroziencik's request for costs is STRICKEN in its entirety.

Plaintiffs Carita Hroziencik and Ryan Hroziencik are ORDERED to give notice.

DATED: August 7, 2026

Lee S. Arian

Judge of the Superior Court